



An Roinn Dlí agus Cirt **Department of Justice**

Report

**on the operation of the European Arrest Warrant Act
2003 (as amended) for the year 2024 made to the
Houses of the Oireachtas by the Central Authority in
the person of the Minister for Justice pursuant to
section 6(6) of the European Arrest Warrant Act 2003.**

Introduction

The European Arrest Warrant Act 2003

The *European Arrest Warrant Act 2003* came into operation on 1 January 2004.

The Act gives effect to the Council Framework Decision of 13 June 2002 on the European Arrest Warrant and the surrender procedures between Member States. The purpose of the Framework Decision is to simplify extradition procedures between Member States of the European Union.

Section 6(6) of the Act provides that the Central Authority shall prepare an annual report to the Oireachtas on the operation of Part 2 of the Act in the preceding year. Part 2 relates to European arrest warrants received in the State and European arrest warrants issued by the State.

Following Brexit, extradition with the United Kingdom is no longer processed under the European Arrest Warrant system and has instead been replaced by a similar extradition arrangement under the EU-UK Trade and Cooperation Agreement. However, given the level of interaction with the UK in relation to extradition, the Department of Justice will continue to include UK statistics in the EAW Annual Report.

The Central Authority

The Act provides that the Minister for Justice will be the Central Authority.

The functions of the Central Authority are administered through Criminal Justice, Service Delivery Division of the Department of Justice. The functions are to:

- (a) receive European arrest warrants issued by a judicial authority in another Member State,
- (b) seek further information or documentation, where appropriate, from the issuing judicial authority,

- (c) apply, or cause an application to be made to the High Court for endorsement of a European arrest warrant for execution,
- (d) liaise with other relevant State authorities (the Office of the Attorney General, the Chief State Solicitor's Office, the Office of the Director of Public Prosecutions and An Garda Síochána) in relation to European arrest warrants,
- (e) communicate with the issuing judicial authorities on matters relevant to the processing of European arrest warrants,
- (f) transmit to other Member States European arrest warrants issued by the High Court,
- (g) inform relevant parties of surrender under sections 15 and 16 of the European Arrest Warrant Act 2003, as amended.

Endorsement of Warrant

Upon receipt of a European arrest warrant or Trade and Cooperation Agreement warrant and following administrative verification, the Central Authority forwards the warrant to the Office of the Chief State Solicitor. The Attorney General's Office provides legal advice as to any possible deficiencies in the warrant. The Chief State Solicitor makes an application to the High Court to have the warrant endorsed for execution.

If the High Court is satisfied that the warrant is in order, it may endorse the warrant for execution. Once endorsed, the warrant is forwarded to An Garda Síochána to be executed. The subject of the warrant must be brought before the High Court as soon as possible after arrest.

Schengen Information System (SIS II)

Ireland commenced participation in the Schengen Information System (SIS II) on 15 March 2021. The new national SIRENE Bureau (Supplementary Information Request at the National Entries) within An Garda Síochána has responsibility for the daily management of the SIS system.

For an arrest to occur on foot of a SIS alert, there is no requirement to have a prior endorsed warrant. A member of An Garda Síochána may arrest any

person without a warrant that the member believes, on reasonable grounds, to be a person named in an alert.

SIRENE Ireland will inform the Central Authority of the arrest and the Central Authority will await transmission of the original EAW via the issuing judicial authority for production to the High Court.

The High Court shall remand the person in custody or, at its discretion, on bail for a period not exceeding 14 days for production to the High Court of the European arrest warrant on foot of which the alert was entered.

High Court Procedures

On his or her first appearance before the High Court the person may be remanded in custody or granted bail at the Court's discretion. A date is set for a hearing of the surrender proceedings that must commence within 21 days of the date of the arrest.

If a person does not consent to surrender, the High Court may order the person's surrender where there is compliance with the provisions of the Act.

The High Court has an initial 60 days (extendable up to 90 days) from the date of the arrest of the person to decide whether to order surrender. If, at the end of that period the High Court decides not to order surrender, or has not yet made an order, it directs the Central Authority to inform the issuing judicial authority and, where appropriate, Eurojust, of the reasons. In general the reasons for delay relate to legal proceedings that are still ongoing where the person whose surrender is sought has exercised his/her right to make a complaint under Article 40.4.2 of the Constitution, has appealed to the Court of Appeal or has appealed on a point of law to the Supreme Court.

Brexit

The UK left the EU on Friday 31 January 2020 on the terms set out in the Withdrawal Agreement, including the Protocol on Ireland / Northern Ireland. Although the UK was no longer a member of the EU, the Withdrawal Agreement

provided for a transition period up to 31 December 2020. On 24 December 2020, the EU and UK negotiating teams reached agreement in principle on a Trade and Cooperation Agreement (TCA), which provides for the surrender of persons wanted for prosecution or punishment as between the Member States of the European Union and the United Kingdom at Title VII of Part 3.

Pursuant to Section 2 of the European Arrest Warrant (Application to Third Countries and Amendment) and Extradition (Amendment) Act, 2012, (which enables the application of provisions of the European Arrest Warrant Act, 2003 to States other than EU Member States), the European Arrest Warrant (Application to Third Countries) (United Kingdom) Order, 2020 was signed by the Minister for Foreign Affairs, on 31 December, 2020. This Order applies the provisions of the European Arrest Warrant Act, 2003 to the United Kingdom of Great Britain and Northern Ireland, in light of the coming into operation of the EU-UK Trade and Cooperation Agreement.

As all Annual Reports on the EAW to date have shown, the State has considerable interaction with the UK in relation to extradition each year. In the context of combating crime and terrorism, the necessity to maintain a functioning system of extradition between the two States has been identified as a key priority. In this regard and for the purposes of the Annual Report, the Department of Justice will continue to provide statistics on UK extradition conducted under the EU-UK Trade and Cooperation Agreement.

Issuance of European arrest warrants/Trade and Cooperation Agreement (TCA) warrants by the State

Part 2 of the 2003 Act sets out the procedure for the issue of a European arrest warrant in the State. A European arrest warrant or TCA warrant may be issued by the High Court when an application is made by the Director of Public Prosecutions for such a warrant. Before the court will issue a European arrest warrant or TCA warrant, there must be in existence a warrant issued by a court in the State for the arrest of the person, and the court must be satisfied that the person is in one of the other European Union Member States or the United Kingdom, as applicable.

The Director of Public Prosecutions, to whom the European arrest warrant or TCA warrant is issued, forwards the warrant to the Central Authority, which transmits it to the relevant Member State or the United Kingdom, as appropriate.

Criminal Justice (Mutual Recognition of Custodial Sentences) Act 2023

The Criminal Justice (Mutual Recognition of Custodial Sentences) Act 2023 (“the MRCS Act”) gives effect to Council Framework Decision 2008/909/JHA on the application of the principle of mutual recognition to judgments in criminal matters imposing custodial sentences or measures involving deprivation of liberty for the purpose of their enforcement in the European Union. The entirety of the MRCS Act came into force on 3 May 2023 pursuant to article 2 of S.I. No. 213 of 2023 Criminal Justice (Mutual Recognition of Custodial Sentences) Act 2023 (Commencement) Order 2023.

Section 3 of the MRCS Act provides that the Act applies to sentences for offences committed whether imposed before, on or after the date of commencement of the Act, which includes retrospective effect of the provisions of the Act. Part 3 of the MRCS Act relates to applications in relation to which the State acts as the executing state.

Where the sentenced person is a person other than an Irish citizen living in the State a judgment in relation to him or her shall not be forwarded unless the

issuing state has obtained the consent of the Minister. The Minister may give his consent where he is satisfied that the enforcement of the sentence in the State would facilitate the sentenced person's social rehabilitation and successful reintegration into society.

Section 75 of the MRCS Act inserted a new section 45B into the 2003 Act, which provides that where a national or resident of another state from which he or she is surrendered-

- (a) is surrendered to the State with a view to being prosecuted in the State, and

- (b) whose surrender is subject to the condition that he or she, after being so prosecuted, is returned to that other state in order to serve any sentence imposed upon him or her in the State,

the Minister will forward the judgment in the proceedings together with a copy of a certificate to that other state in order for the person to serve there any sentence so imposed.

Since the Mutual Recognition of Custodial Sentences (MRCS) Act was enacted in 2023, legal practitioners are becoming more familiar with the provisions set out in the MRCS Act as manifested in 2024.

The provisions set out in the MRCS Act potentially allow for a respondent to serve their sentence on foot of a custodial sentence or a detention order (contained in a European Arrest Warrant) within the State. In these circumstances, a Respondent who is due to be surrendered outside the State, can make an application to serve their sentence relating to the offences set out in a European Arrest Warrant within the State. In 2024, the Central Authority received applications from some Respondents pursuant the MRCS Act. Some such applications are currently under consideration by the Irish Prison Service in conjunction with the Department of Justice prior to submission, where appropriate, to the Minister.

2024 Legislative Amendments

The European Arrest Warrant (Amendment) Act 2024 (“the 2024 Act”) has altered the procedures established by the 2003 Act in some significant ways. The reason for this was to make the 2003 Act more compliant with the objectives of the Framework Decision and this was done after a review by the European Commission.

Section 16(3) of the 2003 Act (as substituted by section 10 of the 2024 Act) says that if an order for surrender is to be made, this should be done “not later than 60 days from the date of the person’s arrest”.

Where the person consents to surrender, section 15(3) of the 2003 Act (as substituted by section 9 of the 2024 Act) says that the order should be made within 10 days of that consent.

In each case, however, this may be extended by “a further period of 30 days” where the High Court considers it “appropriate and just in the circumstances” to do so. The impact of these and the other amendments to the 2003 Act will be kept under ongoing review.

Overview

Composition of the Report

Part 1 records developments in 2024 in relation to European arrest warrants and TCA warrants received by the Central Authority by reference to the various stages in the process.

Part 2 records developments in 2024 in relation to European arrest warrants and TCA warrants transmitted by the Central Authority.

Appendices

A number of appendices are also included setting out the following information:

Appendix 1 - Number of European arrest warrants/TCA warrants received by Ireland in 2024 by Country

Appendix 2 - Total number of Surrender Orders executed by Ireland by year

Appendix 3 - Surrender Orders executed by Ireland in 2024 by Country

Appendix 4 - Number of European arrest warrants / TCA warrants sent by Ireland in 2024 by Country

Appendix 5 - Number of surrenders to Ireland by year

Appendix 6 - Number of surrenders to Ireland in 2021 by Country

Part 1

Developments in 2024 in relation to European Arrest Warrants and TCA Warrants received by Ireland

Position in 2024 concerning European arrest warrants received in previous years

The number of European arrest warrants on hand at 1 January 2024 was 354.

The number of European arrest warrants/Trade and Cooperation Agreement warrants received in 2024

A total of 67 European arrest warrants and 52 TCA warrants were received by the Central Authority in 2024.

Types of offences

European arrest warrants/TCA warrants received during 2024 cited a wide range of offences. Among the principal offences cited were murder/grievous bodily injury, sexual offences including rape and sexual abuse of children, drug offences, kidnapping, robbery/assault, swindling, fraud/forgery, counterfeiting and human trafficking.

Number of persons arrested pursuant to a European arrest warrant or Trade and Cooperation Agreement warrant

92 arrests were made in this jurisdiction in 2024 pursuant to European arrest warrants / TCA warrants received in 2024.

Notifications under Section 16(10) and 16(11) of the European Arrest Warrant Act 2003

Section 16(10) of the Act applies where the High Court has not ordered a surrender within 60-90 days of an individual's arrest. In such cases, the High Court is required to direct the Central Authority to notify the issuing judicial authority and Eurojust as to the reasons why. 45 such notifications were made in 2024.

Number of received European arrest warrants / Trade and Cooperation Agreement warrants completed in 2024

A total of 173 European arrest warrants / TCA warrants were completed in 2024. 63 of these were received in 2023, and the remaining 110 were received during the period 2004 to 2022.

Number of complaints under Article 40.4.2 of the Constitution in 2024

There were 0 complaints made under Article 40.4.2 of the Constitution in 2024.

Number of Cases appealed to the Court of Appeal in 2024

There was 1 appeal to the Court of Appeal in 2024..

Number of Cases appealed to the Supreme Court in 2021

There were 4 appeals to the Supreme Court in 2024.

Number of European arrest warrants / Trade and Cooperation Agreement warrants on hand at 31 December 2024

There were 397 European arrest warrant / TCA warrants on hand at 31 December 2024. Of these, 63 warrants were received in 2024 while 336 warrants were received between 2004 and 2023.

Surrender Orders executed by the State since 1 January 2021

There were 91 surrender orders involving 83 individuals executed by the State in 2024 (an issuing State may, on occasion, transmit a number of European arrest warrants or TCA warrants comprising different offences related to a single individual).

Total Surrender Orders executed between 2004 and 31 December 2024

2003 surrender orders have been executed, since the coming into operation of the European Arrest Warrant Act on 1 January 2004, up to 31 December 2024.

Part 2

Developments in 2024 in relation to European Arrest Warrants and TCA Warrants transmitted by the Central Authority

Role of the Central Authority

The role of the Central Authority in relation to the issue by the State of European arrest warrants / TCA warrants is to transmit each warrant to the executing Member State or the United Kingdom, as appropriate. The Central Authority also acts as a conduit where the executing State requests further information or documents.

Position in 2024 concerning European arrest warrants transmitted between 2004 and 2023

A total of 245 European arrest warrants, transmitted by the Central Authority to other Member States between 2004 and 2024, were still ongoing at 1 January 2024.

Number of European arrests warrants / Trade and Cooperation Agreement warrants transmitted by the Central Authority in 2024

A total of 37 European arrest warrants and 73 TCA warrants were transmitted by the Central Authority to other Member States and the United Kingdom in 2024.

Types of offences

The types of offences cited in the European arrest warrants / TCA warrants transmitted by the Central Authority in 2024 included murder/grievous bodily injury, abduction/kidnapping, sexual offences including rape and sexual abuse of children, drug offences, kidnapping, robbery/assault, violent disorder/public order, fraud/forgery, laundering proceeds of crime and human trafficking.

Number of European arrest warrants/Trade and Cooperation Agreement warrant transmitted and still ongoing at 31 December 2024

244 European arrest warrants/TCA warrants transmitted by the State were still ongoing on 31 December 2024. 40 of these warrants were transmitted during 2024 while the remaining 204 had been transmitted between 2004 and 2023.

Number surrendered to the State in 2024

60 individuals who were the subject of Irish issued European Arrest Warrants/TCA warrants were surrendered to the State in 2024. Of these, 31 related to European arrest warrants / TCA warrants transmitted in 2024 while 31 related to European arrest warrants transmitted between 2004 and 2023.

Number of surrenders to the State since 1 January 2004

915 surrenders have been made to the State since the coming into operation of the European Arrest Warrant Act on 1 January 2004 up to 31 December 2024.

Appendix 1

Number of European Arrest Warrants / TCA Warrants received by Ireland in 2024 by Country

Country	Number of EAW / TCA Warrants received
Croatia	3
Czech Republic	5
Estonia	2
Finland	1
France	1
Hungary	3
Italy	5
Latvia	1
Lithuania	4
Poland	23
Portugal	2
Romania	11
Spain	5
United Kingdom	53*
Total	119

* EU-UK TCA Warrants

Appendix 2

Total number of Surrender Orders executed by Ireland by year

Year	Number of surrender orders executed
2004	2
2005	7
2006	45
2007	67
2008	73
2009	69
2010	162
2011	176
2012	149
2013	157
2014	115
2015	96
2016	82
2017	73
2018	71
2019	109
2020	91
2021	125
2022	121
2023	122
2024	91
Total	2,003

Appendix 3

Surrender Orders executed by Ireland in 2024 by Country

State of Origin	Number of surrender orders executed by the State in 2024
Belgium	1
Croatia	3
Czech Republic	6
Finland	1
Germany	2
Hungary	3
Italy	5
Latvia	2
Lithuania	7
Poland	26
Portugal	2
Romania	6
Spain	3
Sweden	1
United Kingdom	23
Total	91

Appendix 4
Number of European arrest warrants and TCA warrants sent by Ireland
in 2024 by Country

Country	EAW/TCA warrants transmitted in 2024
Bulgaria	1
Croatia	2
Czech Republic	1
Estonia	1
Finland	1
France	3
Germany	5
Greece	1
Lithuania	5
Netherlands	3
Poland	3
Romania	7
Slovakia	1
Spain	3
United Kingdom	72*
Total	109

* EU-UK TCA Warrants

Appendix 5

Number of surrenders to Ireland by year

Year	Number of surrenders
2004	1
2005	17
2006	21
2007	28
2008	25
2009	31
2010	29
2011	34
2012	51
2013	45
2014	56
2015	47
2016	46
2017	47
2018	62
2019	51
2020	49
2021	81
2022	86
2023	46
2024	60
Total	913

Appendix 6

Number of surrenders to Ireland in 2024 by Country

Country	Number of individuals surrendered
Austria	1
Belgium	1
Croatia	1
Estonia	1
Finland	1
France	3
Germany	4
Italy	1
Netherlands	1
Norway	1
Poland	4
Romania	2
Spain	4
United Kingdom	35
Total	60